

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Date Purchased:

-----X
LEFONE ELEY,

Plaintiff,

against

SUMMONS

Plaintiff designates Bronx
County as the place of trial.

THE CITY OF NEW YORK, COLLIN BURDEN,
KENNETH KILLROY, MICHAEL HEINZ,
COLTON REITZES, JOHN SOTO, SERGEANT GRASSO,
NELSON ACEVEDO, P.O. GEORGE ISABEL, JOSE
COLLAZO, WILBERT RODRIGUEZ, JOHN
GERMAINFRIAS, JIMMIE MOORE, OFFICER
CHRISTOPHER DOE (PERSON ON LEFT AS DEPICTED IN
ATTACHED PHOTOGRAPH) and P.O. JOHN DOES #1-8,

Basis of Designation:
Plaintiff's Residence

Plaintiff Resides in:

County of Bronx

Defendants.
-----X

To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, NY
June 4, 2018

RAWLINS LAW, PLLC

_____/s/_____

Gary Rawlins, Esq.

Attorney for Plaintiff

LEFONE ELEY

777 Westchester Ave, Suite #101

White Plains, NY 10604

Tel: (212) 926-0050

Fax: (347) 332-1592

To:

THE CITY OF NEW YORK

Corporation Counsel

The City of New York Law Department

100 Church Street,

New York, NY 10007

P.O. COLLIN BURDEN Shield #12858

PSA 8

2794 Randall Ave,

Bronx, NY 10465

P.O. KENNETH KILLROY 945221

PSA 8

2794 Randall Ave,

Bronx, NY 10465

P.O. MICHAEL HEINZ Shield #9897

PSA 8

2794 Randall Ave,

Bronx, NY 10465

P.O. COLTON REITZES 961157

PSA 8

2794 Randall Ave,

Bronx, NY 10465

DETECTIVE JOHN SOTO Shield #6283

45th Precinct

2877 Barkley Ave,

Bronx, NY 10465

SERGEANT GRASSO

P.O. NELSON ACEVEDO Tax Reg. Shield #6642

43rd Precinct

900 Fteley Ave,

Bronx, NY 10473

P.O. GEORGE ISABEL 960711

PSA 8

2794 Randall Ave,

Bronx, NY 10465

P.O. JOHN DOE #1-8

JOSE COLLAZO

WILBERT RODRIGUEZ

JOHN GERMAINFRIAS,

JIMMIE MOORE

OFFICER CHRISTOPHER DOE

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Date Purchased:

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LEFONE ELEY,

Plaintiff,

VERIFIED COMPLAINT

against

THE CITY OF NEW YORK, COLLIN BURDEN,
KENNETH KILLROY, MICHAEL HEINZ,
COLTON REITZES, JOHN SOTO, SERGEANT GRASSO,
NELSON ACEVEDO, P.O. GEORGE ISABEL, JOSE
COLLAZO, WILBERT RODRIGUEZ, JOHN
GERMAINFRIAS, JIMMIE MOORE, OFFICER
CHRISTOPHER DOE (**PERSON ON LEFT AS DEPICTED IN
ATTACHED PHOTOGRAPH**) and P.O. JOHN DOES #1-8,

Defendants.

-----X
Plaintiff, by his attorney, **GARY N. RAWLINS**, as and for his Verified Complaint,
respectfully alleges, upon information and belief that:

INTRODUCTION

1. This is an action for money damages brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourth and Fourteenth Amendments to the United States Constitution against THE CITY OF NEW YORK, COLLIN BURDEN, KENNETH KILLROY, MICHAEL HEINZ, COLTON REITZES, JOHN SOTO, SERGEANT GRASSO, NELSON ACEVEDO, P.O. GEORGE ISABEL, JOSE COLLAZO, WILBERT RODRIGUEZ, JOHN GERMAINFRIAS, JIMMIE MOORE, OFFICER CHRISTOPHER DOE (**PERSON ON LEFT AS DEPICTED IN ATTACHED PHOTOGRAPH**) and P.O. JOHN DOES #1-8, police officers of the City of New York, in their individual capacities as New York City Police Officers acting under color of law. Jurisdiction is based upon 28 U.S.C. §§ 1331 and 1343.
2. It is alleged that between on July 18, 2017, September 10, 2017, September 15, 2017, January 21, 2018, January 28, 2018, and February 7, 2018 the individual police officer defendants made false arrests and seizures of the person of **LEFONE ELEY**, violating his rights under the Fourth and Fourteenth Amendments to the United States Constitution, and that each named defendant jointly and severally battered and exercised

excessive force against **LEFONE ELEY**. It is further alleged that these violations and torts were committed as a result of policies and customs of the City of New York.

THE PARTIES

3. That at all times herein mentioned, defendant **THE CITY OF NEW YORK** (hereinafter “the City”) was and still is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
4. That prior to the institution of this action, several notices of claim and notices of intention to sue were duly served upon and filed with the defendants herein on behalf of Plaintiff **LEFONE ELEY** as outlined below:
 - a. Date of incident - July 13, 2017. Notice of Claim filed on September 8, 2017.
 - b. Date of incident - July 18, 2017. Notice of Claim filed on September 8, 2017.
 - c. Date of incident - September 10, 2017. Notice of Claim filed on October 23, 2017.
 - d. Date of incident - September 15, 2017. Notice of Claim filed on October 2, 2017.
Date of end of Malicious Prosecution - December 28, 2017. Amended Notice of Claim filed on February 15, 2018.
 - e. Date of incident - January 21, 2018. Notice of Claim filed on February 15, 2018.
Amended Notice of Claim filed on March 16, 2018.
 - f. Date of incident - January 28, 2018. Notice of Claim filed on February 15, 2018.
5. That more than thirty (30) days have elapsed since defendants were served with the notices of claim and intention to sue on behalf on Eley, and defendants have neglected and/or refused to make adjustment or payment thereon and this action being commenced within one year and ninety days of July 13, 2017 and all subsequent dates as outlined above after the causes of action accrued herein.
6. Hearings pursuant to General Municipal Law 50-H were held on:
 - a. March 1, 2018 for July 13, 2017 date of incident.
 - b. March 1, 2018 for July 18, 2017 date of incident.
 - c. January 19, 2018 for September 10, 2017 date of incident.
 - d. February 15, 2018 for September 15, 2017 date of incident.

- e. April 25, 2018 for January 21, 2018 date of incident.
- f. April 25, 2018 for January 28, 2018 date of incident.
- 7. That at all times herein mentioned, the City owned, operated, controlled, managed and maintained the New York Police Department (hereinafter "NYPD").
- 8. The defendant Officers were at all times relevant to this complaint duly appointed and acting officers of the police department of the City of New York, acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the Commonwealth of New York and/or the City of New York.
- 9. The City of New York, New York, is a municipal corporation and the public employer of the said officers.

FACTS

- 10. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.
- 11. That on July 13, 2017, while driving his vehicle, the City, by and through its officers, agents, servants and/or employees, specifically **MICHAEL HEINZ**, illegally stopped and searched Mr. Eley's vehicle without a warrant or probable cause.
- 12. That on July 18, 2017, while standing next to his parked car, the City, by and through its officers, agents, servants and/or employees, specifically **P.O. COLLIN BURDEN , P.O. KENNETH KILLROY** and **P.O. JOHN DOE #2-6** attacked, assaulted, and falsely arrested Mr. Eley. These defendants strip searched Mr. Eley.
- 13. That on September 10, 2017, while driving his vehicle, the City, by and through its officers, agents, servants and/or employees, specifically **P.O. MICHAEL HEINZ Shield #9897**, illegally stopped, searched, attacked, assaulted, and falsely arrested Mr. Eley.
- 14. That on September 15, 2017, while walking as a lawful pedestrian, the City, by and through its officers, agents, servants and/or employees, specifically **P.O. COLTON REITZES, DETECTIVE JOHN SOTO Shield #6283** and **SERGEANT GRASSO**, illegally stopped, searched, attacked, assaulted, and falsely arrested Mr. Eley. Mr. Eley was arrested for Jay Walking. He was then transported to the 45th precinct where he was strip searched and handcuffed and left in a dark room for approximately three hours.

Three false summonses were placed in Mr. Eley's pocket as he stood handcuffed in front of the precinct. The cuffs were removed and he was released. He was strip searched twice.

15. That on January 21, 2018, while driving his vehicle, the City, by and through its officers, agents, servants and/or employees, specifically **P.O. NELSON ACEVEDO 6642** and **P.O. JOHN DOE** illegally stopped, searched, attacked, assaulted, and falsely arrested Mr. Eley. He received a ticket for a broken headlight and was released. His cell phone screen was cracked when it was returned to him.
16. That on January 28, 2018, while lawfully within his mother's residential building, the City, by and through its officers, agents, servants and/or employees, specifically **P.O. GEORGE ISABEL Tax Reg. #960711** and **P.O. JOHN DOE #8** illegally stopped, searched, attacked, assaulted, and falsely arrested Mr. Eley.
17. That thereafter, the City, by and through its officers, agents, servants and/or employees, without a warrant, forcibly handcuffed, detained, arrested and imprisoned Plaintiff without Plaintiff's consent and without justification.
18. That Plaintiff's detention and imprisonment continued at various other locations, including the NYPD's PSA 8, 43rd Precinct, 45th Precinct and Central Bookings.
19. That during his detentions and imprisonment, Plaintiff was subjected to illegal strip searches.
20. That on July 18, 2017, September 10, 2017, September 15, 2017, and January 28, 2018, the City, by and through its officers, agents, servants and/or employees, also commenced and/or caused to be commenced against Plaintiff criminal prosecutions, by issuing and/or causing to be issued to Plaintiff's Criminal Court summonses or Desk Appearance Tickets in which Plaintiff was falsely accused of various crimes of which he was innocent and of which the officers knew Plaintiff to be innocent.
21. That in support of the aforesaid criminal prosecutions, the defendant officers made statements and accusations about Plaintiff that they knew to be false.

22. That the aforesaid actions by the City, by and through its officers, agents, servants and/or employees, were malicious in nature and in violation of his United States Constitutional civil rights.
23. That the malicious criminal prosecution of Plaintiff continued for an extended period of time, during which time Plaintiff was required to retain counsel, appear in court, and defend against the various false accusations.
24. All criminal charges against Plaintiff were dismissed and the criminal prosecution resulted in termination favorable to Plaintiff.
25. That as a result of the aforesaid improper and illegal arrest and the proceedings that resulted therefrom, Plaintiff suffered and continues to suffer physical, emotional and psychological injuries, loss of liberty, embarrassment and humiliation and the emotional stress and distress from being constantly harassed in violation of his civil rights.
26. On July 13, 2017 at approximately 5:45pm, Plaintiff **LEFONE ELEY** was driving on Story Avenue, Bronx, NY 10473 when he was stopped by defendant Michael Heinz without probable cause. Defendant **P.O. JOHN DOE #1** did not have probable cause to search Plaintiff's vehicle yet did so despite being told by Mr. Eley that he could not search the car. Plaintiff **LEFONE ELEY** captured said search on videotape.
27. On or about July 18, 2017, at approximately 6:00pm, Plaintiff **LEFONE ELEY** was standing next to his parked car that he had just purchased when two NYPD uniformed officers, **P.O. COLLIN BURDEN Shield #12858** and **P.O. KENNETH KILLROY**, approached him and told him to get in the car, put the key in the ignition and hand them all the documents related to the car. The defendant officers took the documents and claimed the plates were forged. Defendant officers called back up (**P.O. JOHN DOE #2-6**) and arrested Plaintiff and brought him to PSA 8 located at 2794 Randall Ave, Bronx, NY 10465 where he was strip searched. Plaintiff spent approximately 24-36 hours in Central Bookings at 215 E 161st St, Bronx, NY 10451. When he went to see the judge, he was released on his own recognizance. Plaintiff **LEFONE ELEY**'s 2000 Honda Accord was impounded. All charges were dismissed on September 12, 2017.

28. On September 10, 2017, at approximately 4:10pm, near 870 Rosedale Avenue, Bronx, NY, **P.O. MICHAEL HEINZ Shield #9897** stopped Plaintiff **LEFONE ELEY** who was driving a vehicle. When the Plaintiff **LEFONE ELEY** pulled over and took out his phone to start recording the defendant, **P.O. MICHAEL HEINZ Shield #9897** reached in the car, grabbed Plaintiff's phone, threw it to the ground and smashed it. **P.O. MICHAEL HEINZ Shield #9897** then smacked Mr. Eley in the face through the car window. **P.O. MICHAEL HEINZ Shield #9897** opened the door and pulled Mr. Eley out of the car and placed him in tight and restrictive handcuffs and claimed Plaintiff was being arrested for Resisting Arrest and Driving with a Suspended License. The charges are all false. Mr. Eley was then transported to Jacobi Medical Center as **P.O. MICHAEL HEINZ Shield #9897** falsely stated Mr. Eley wanted to kill himself. Then he was brought to NYPD Housing PSA 8 Precinct where he was strip searched and fondled. He was , then transferred to Central Bookings. Plaintiff **LEFONE ELEY** was in custody until approximately 11:00am the next day, September 11, 2017. All charges were dismissed on March 28, 2018.
29. On or about September 15, 2017 at approximately 7:30pm, near 1800 Story Avenue, Bronx, NY, **P.O. COLTON REITZES Tax Reg. #961157** stopped Plaintiff **LEFONE ELEY** for jay-walking. **P.O. COLTON REITZES Tax Reg. #961157** arrested Plaintiff **LEFONE ELEY** and brought him to the 45th Precinct. **P.O. COLTON REITZES Tax Reg. #961157** left him in a room with unreasonably tightened handcuffs. Mr. Eley was strip searched through his clothing at the direction of **DETECTIVE JOHN SOTO Shield #6283** and **SERGEANT GRASSO**. EMS came to treat Plaintiff **LEFONE ELEY'S** wrists. Plaintiff **LEFONE ELEY** received three summons---one for disorderly conduct and two for jay-walking and was released approximately 3 hours later from the 45th Precinct. All charges against Plaintiff were dismissed on December 28, 2017.
30. On or about January 21, 2018, at approximately 3:30 am, Plaintiff **LEFONE ELEY** was driving down Story Avenue, Bronx, NY, when he observed two cops cars on the other side of the street. He stopped at a red light and when the light turned green, he put his left hand signal on to turn. The police car previously visualized turned its lights on and pulled

Mr. Eley over. **P.O. NELSON ACEVEDO Shield #6642** and **P.O. JOHN DOE #7** approached the vehicle and told Plaintiff to turn off the car and roll down the windows which he did. **P.O. NELSON ACEVEDO Shield #6642** and/or **P.O. JOHN DOE #7** opened Mr. Eley's driver side door and asked for his license and registration. **P.O. NELSON ACEVEDO Shield #6642** and/or **P.O. JOHN DOE #7** ran both documents, gave them back to Mr. Eley and told him he was stopped because his headlight was out. **P.O. NELSON ACEVEDO Shield #6642** and/or **P.O. JOHN DOE #7** told Mr. Eley to get out the vehicle and walk to the back while **P.O. NELSON ACEVEDO Shield #6642** and/or **P.O. JOHN DOE #7** illegally searched the vehicle without Plaintiff's permission. **P.O. NELSON ACEVEDO Tax Reg. Shield #6642** and/or **P.O. JOHN DOE #7** patted, frisked and searched Mr. Eley and inappropriately touched Plaintiff's genitals. Mr. Eley was told to turn around and put his hands behind his back at which point he was arrested and brought to the 43rd Precinct. Mr. Eley's property was taken and bagged. He was brought to a holding cell, searched again and had his socks, shoes, earrings and belt removed. He spent approximately 1 hour in custody before being released from the precinct with a traffic violation for a headlight being out even though it wasn't out. When he was given his property back, his phone screen was cracked.

31. On or about January 28, 2018, at approximately 2:33pm, at or about 1760 Story Avenue, Bronx, NY, Plaintiff **LEFONE ELEY** was coming out his mother's building to go to the store. Upon returning from the store, two officers (**P.O. GEORGE ISABEL** and **P.O. JOHN DOE #8**) were in the lobby of his mother's building. Mr. Eley thought they were attending to a matter that didn't involve him so he waited outside of the lobby. The defendant officers asked him "What's Up?" and Mr. Eley responded they were not friends and tried to continue about his way. The defendant officers then said he matched the description of a man selling drugs in said lobby. Mr. Eley told the officers it was not him and he was simply there because his mother resided in said building. The officer forcibly reached into Mr. Eley's pocket to obtain his ID and gave him a ticket for Disorderly Conduct. All charges were dismissed on or about April 12, 2018.

32. At no time during the events described above, was plaintiff **LEFONE ELEY** intoxicated, incapacitated a threat to the safety of himself or others, or disorderly. He had not committed any criminal offenses.
33. The defendant police officers had no warrant for the arrest of the plaintiff, no probable cause for the arrest of the plaintiff and no legal cause or excuse to seize the person of the plaintiff.
34. At all times during the events described above, the defendant police officers were engaged in a joint venture. The individual officers assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during the said events.
35. As a direct and proximate result of the said acts of the defendant Officers, the plaintiff **LEFONE ELEY** suffered the following injuries and damages:
- a. Violation of his constitutional rights under the Fourth and Fourteenth Amendments to the United States Constitution to be free from an unreasonable search and seizure of his person;
 - b. Excessive Force;
 - c. Loss of his physical liberty;
 - d. Physical pain and suffering and emotional trauma and suffering, requiring the expenditure of money for treatment.
 - e. Violation of his civil rights pursuant to 42 USC §1983.
36. The actions of the defendant Officers violated the following clearly established and well settled federal constitutional rights of **LEFONE ELEY**:
- a. Freedom from the unreasonable search and seizure of his person;
 - b. Freedom from the use of excessive, unreasonable and unjustified force against his person.
37. Defendant Officers observed one another violating Mr. Eley's civil rights and each made a conscious choice not to intervene and or to assist in the violation of his rights.
38. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

FIRST CAUSE OF ACTION AGAINST AGAINST
DEFENDANT OFFICERS FOR FALSE ARREST AND MALICIOUS PROSECUTION
AND VIOLATION OF §1983

39. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.
40. That the aforementioned actions of the defendant constitutes a malicious prosecution of Plaintiff in that the City, by its officers: 1) commenced and/or continued a criminal proceedings; 2) the criminal proceeding terminated in favor of the Plaintiff; 3) There was an absence of probable cause for the initiation of the prior criminal proceeding; and 4) there was actual malice on the part of the City as demonstrated by the policy and practice of the City and the actions of its agents.
41. All the aforementioned acts of Defendants, their agents, servants and employees were carried out under the color of state law.
42. All of the aforementioned acts of defendants deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
43. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officials, officers, pursuant to the customs, usages, practices, procedures, and the rules of NYC and, the NYPD under all the supervision of ranking officers of said department.
44. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the

respective municipality/authority, which is forbidden by the Constitution of the United States.

45. The acts complained of deprived Plaintiff of his Fourth Amendment constitutional rights:

(a) not to have excessive force imposed upon him; (b) not to have summary punishment imposed upon him; (c) to due process of law; (d) to equal protection of the law; (e) not to be subject to an unlawful search and seizure; and (f) not to be subject to abuse of process, malicious and retaliatory prosecution.

46. Defendants lacked probable cause to initiate criminal proceedings against Plaintiff.

47. Defendants issued legal process to place Plaintiff under arrest.

48. Defendants arrested Plaintiff in order to obtain a collateral objective outside the legitimate ends of the legal process. The defendants actions as described above constitutes a conspiracy to violate the Fourth Amendment rights under the Federal Constitution.

49. Defendants acted with intent to do harm to Plaintiff without excuse or justification.

50. As a result of the foregoing, Plaintiff sustained, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

SECOND CAUSE OF ACTION FOR MONELL CLAIMS AGAINST NYC

51. Plaintiff repeats, reiterates and realleges each and every allegation contained in aforementioned paragraphs as if the same were more fully set forth at length herein.

52. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, with all the actual and/or apparent authority attendant thereto.
53. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers pursuant to the customs, policies, usage, practices, procedures, and rules of the Defendant NYC and the , all under the supervision of ranking officers of said department.
54. The customs, policies, usages, practices, procedures and rules of the Defendant NYC and the NYPD constituted a deliberate indifference to the safety, well-being and constitutional rights of the Plaintiff and to the public.
55. The customs, policies, usages, practices, procedures and rules of the Defendant NYC and the Town of Greenwich Police Department were the direct and proximate cause of the constitutional violations suffered by the Plaintiff as alleged herein.
56. The customs, policies, usages, practices, procedures and rules of the Defendant NYC and the NYPD were the moving force behind the constitutional violations suffered by the Plaintiff as alleged herein.
57. As a result of the customs, policies, usages, practices, procedures and rules of the Defendant NYC, Plaintiff was subjected to unlawful and excessive force resulting in permanent and disabling injuries.
58. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of Plaintiff.

59. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of Plaintiff's constitutional rights.

60. All of the foregoing acts by Defendants deprived Plaintiff of federally protected rights including, but not limited to, the right:

- a. Not to have excessive force imposed upon him;
- b. Not to have summary punishment imposed upon him;
- c. To receive equal protection under the law; and
- d. Not to be subject to unreasonable searches and seizures.

61. As a result of the foregoing, Plaintiff sustained, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

THIRD CLAIM FOR RELIEF
CONSPIRACY TO VIOLATE PLAINTIFF'S CIVIL RIGHTS

62. Plaintiff repeats, reiterates and realleges each and every allegation contained in the aforementioned paragraphs as if the same were more fully set forth at length herein.

63. Defendants conspired and acted in concert to do whatever was necessary, lawful or not, to cause the arrest, prosecution, and detention of Plaintiff.

64. Throughout the period of conspiracy, the Defendants pursued their objectives with actual malice toward Plaintiff, with utter indifference to and disregard for Plaintiff's rights under the Constitution and laws of the United States, without probable cause or reasonable cause to believe Plaintiff guilty of any crime.

65. The aforesaid conduct of the Defendants operated to deprive Plaintiff of important and well established rights under the Constitution and laws of the United States including, but not limited to, his rights:

(a) Not to be deprived of his liberty or to be arrested, detained or imprisoned except upon probable cause to believe him guilty of a crime, under the Fourth, Fifth and Fourteenth Amendments to the United States Constitution;

(b) Not to be deprived of his liberty or to be arrested, indicated, or prosecuted based upon evidence fabricated by a government official; and

(c) Not to be deprived of his liberty or be arrested, prosecuted or imprisoned based upon the testimony of witnesses who had been illegally influenced and or coerced for their testimony.

(d) Not to deprive the plaintiff of Brady material NYC has in its possession consisting of, upon information and belief, audio recordings documents and data from NYC sources.

(e) Not to be subject to assault, battery, illegal strip searches, and excessive force from law enforcement supervisors and officers.

66. The foregoing violations of Plaintiff's constitutional rights by Defendant NYC directly and proximately caused Plaintiff's arrest, detention, and deprivation of liberty.

67. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

THIRD CAUSE OF ACTION AGAINST NYC

(“Monell” Claim)

68. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.
69. That the aforesaid actions by the involved NYPD officers were consistent with, in compliance with, and in furtherance of an authorized pattern and practice of the NYPD whereby persons whose civil rights were violated by NYPD officers without probable cause, without reasonable suspicion, and without justification, and an illegal and unconstitutional policy of the NYPD that requires officers, under threat of adverse employment consequences, to falsify police reports and affidavits or other supporting documentation to maliciously prosecute the victim of the police wrongdoing.
70. That the aforesaid actions of the involved NYPD officers resulted from a deliberate indifference by the City to a pattern of unconstitutional conduct by those officers.
71. That all of the foregoing causes of action fall within one of more of the exceptions set forth in CPLR § 1602 with respect to joint and several liability.

FOURTH CAUSE OF ACTION AGAINST THE CITY

(Punitive Damages)

72. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.
73. The NYPD sanctioned malicious prosecution based on officers' acts, all of which were outside the bounds of conduct tolerated in a civil society, without regard for Plaintiff **LEFONE ELEY'S** well being, and were based on a lack of concern and ill-will towards Plaintiff.
74. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION AGAINST THE CITY

(Negligent Hiring, Training, Retention and Supervision)

75. Plaintiff repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.
76. That at the time of the aforementioned false arrest, false imprisonment, defamation, and violations of Plaintiff **LEFONE ELEY'S** civil rights, all of the above-captioned

Defendants were acting in the course and general scope of their employment duties and official duties pursuant to the authority given them by Defendant **CITY** and under authority and direction of officials at the New York City Police Department.

77. Defendants **NYC** at all relevant times herein should have known or had reason or opportunity to know, that the agents, servants and/or employees named as defendants in this complaint were unfit for the employment for which they were hired, unfit for the official duties delegated to them and unfit for the law enforcement, investigatory, and prosecutorial responsibilities to which they were assigned.
78. That by hiring, retaining, employing, failing to supervise, failing to screen, failing to test, failing to evaluate, failing to monitor, failing to manage, failing to train and failing to investigate the aforementioned agents, servants and/or employees, Defendants **NYC** negligently created and caused a situation where it was likely that said agents, servants and/or employees would, as a result of their work history, unfit character, malicious temperament, criminal propensity, inadequate training, inadequate management and inadequate supervision, unlawfully arrest, unlawfully imprison, unlawfully deprive innocent persons such as Plaintiff **LEFONE ELEY** of their Constitutional rights under the New York State Constitution, intentionally, wrongfully and unjustifiably arrested, detained and deprived such person of his liberty against his will, and imprisoned such person without sufficient reasons or probable cause appearing therefore.
79. Defendants **NYC** knew or should have known in the exercise of due and reasonable care that the aforementioned agents, servants and/or employees were malicious, vicious, potentially dangerous, and negligent and performing perjurious, criminal and illegal acts during the course of their employment duties.
80. Defendants **NYC** were negligent in the hiring, employment, training, retention, management, supervision, screening, testing, evaluating, monitoring, and investigating of the aforementioned agents, servants and/or employees.
81. That by reason of and in consequence of said negligence and lack of reasonable care on the part of defendants **NYC** and their agents, servants and/or employees, Plaintiff **LEFONE ELEY** suffered the afore-stated injuries.

82. Prior to July 13, 2017, the City of New York developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of persons in New York, which caused the violation of plaintiff's rights.
83. It was the policy and/or custom of the City of New York to inadequately and improperly investigate citizen complaints of police misconduct, and acts of misconduct were instead encouraged and tolerated by the City of New York.
84. It was the policy and/or custom of the City of New York to inadequately supervise and train its police officers, including the defendant officers, thereby failing to adequately discourage further constitutional violations on the part of its police officers. The City did not require appropriate in-service training or re-training of officers who were known to have engaged in police misconduct.
85. As a result of the above described policies and customs, police officers of the City of New York, including the defendant officers, believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.
86. Prior to on or about July 13, 2017, Defendants NYC officers were known by NYC to be unruly and to verbally threaten and to harass other human beings.
87. That defendants NYC negligently hired and trained officers, negligently failed to supervise or discharge them from their employ, thereby causing and contributing to the above stated incident.
88. Plaintiff was caused to sustain serious injuries, caused to suffer pain, offense, shock and mental anguish; that these injuries and their effects will be permanent; and as a result of said injuries Plaintiff has been caused to incur, and will continue to incur expenses for medical care and attention; Plaintiff was and will continue to be rendered unable to perform his normal activities and duties having sustained a resultant loss there from.
89. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION AGAINST INDIVIDUAL DEFENDANTS

(42 U.S.C. § 1983)

90. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

91. Plaintiff **LEFONE ELEY** claims damages for the injuries set forth above under 42 U.S.C. § 1983 against each individual defendant for violation of his constitutional rights under, color of law.

92. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION AGAINST INDIVIDUAL DEFENDANTS

(Excessive Force in the Form of Unlawful Assault and Battery)

93. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

94. Defendants assaulted and battered **LEFONE ELEY**.

95. As a result of this assault, battery and excessive force, plaintiff **LEFONE ELEY** suffered damages as aforesaid.

96. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION AGAINST INDIVIDUAL DEFENDANTS

(False Arrest and Illegal Imprisonment)

97. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

98. Defendants illegally arrested and illegally imprisoned **LEFONE ELEY** in violation of his federal constitutional rights.

99. As a result of this false arrest and illegal imprisonment, the plaintiff suffered the damages as aforesaid.

100. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

NINTH CAUSE OF ACTION AGAINST ALL DEFENDANTS

(Failure to Intervene to Prevent the Violation of Plaintiff's Civil Rights)

101. Plaintiff repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.
102. As a result of the above actions, Defendants **NYC** individually, and/or vicariously, by and through its agents, servants and /or employees, and **OFFICERS** failed to intervene to prevent or end the unlawful conduct inflicted upon Plaintiff **LEFONE ELEY** by **OFFICERS**.
103. As a result of the foregoing, Defendants **NYC** individually and and/or vicariously by and through their agents servants, and/or employees, and **OFFICERS** displayed a deliberate indifference to Plaintiff **LEFONE ELEY'S** rights to be free from unreasonable searches and seizures and excessive use of force.
104. As a result of the foregoing, Defendants **NYC** individually and/or vicariously by and through its agents servants, and/or employees acted intentionally, willfully, maliciously, with reckless disregard for and deliberate indifference to the plaintiff rights and physical well being.
105. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

TENTH CAUSE OF ACTION AGAINST ALL DEFENDANTS

(Intentional Infliction of Emotional Distress)

106. Plaintiff repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.
107. The Defendants, and each of them, acted outrageously for their above-stated roles in the wrongful stop, detainment, charging, failing to investigate, failure to adhere to law, rule and regulations known to them, failing to heed Plaintiff **LEFONE ELEY** protestations, manhandling, false arrest, prolonged captivity, intimidation and public humiliation of Plaintiff.
108. Said emotional harm was exacerbated by the persistence of Defendants, by maintaining the false claims and criminal charges against the Plaintiff **LEFONE ELEY** without any further investigation of the incident. Defendants knew or had reasons to know that the criminal charges against Plaintiff were false or without merit, yet that they

detained and prosecuted Plaintiff with the intention of causing further harm and duress to the Plaintiff.

109. Defendants knew that their conduct would cause severe and extreme emotional harm to the Plaintiff **LEFONE ELEY** and injury to his good name and reputation.

110. Said harm did in fact occur in this case, in that Plaintiff **LEFONE ELEY** was debilitated to the point where he still suffers from episodes of anxiety, anger, loss of sleep, and other impingement of the emotional good health; to the extent that Plaintiff have had to seek support and counseling within the family.

111. By reason of the foregoing, Plaintiff **LEFONE ELEY** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

ELEVENTH CAUSE OF ACTION AGAINST ALL DEFENDANTS

(Egregious Conduct)

112. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

113. The acts of **NYC** complained of herein were performed with malice and willful intent and are beyond the bounds of a civilized society, especially here where Defendants knew they did not have just cause from the outset to arrest and detain Plaintiff.

114. Plaintiff was caused to sustain serious injuries and to suffer pain, shock, mental anguish, embarrassment, humiliation, anxiety and bodily injury.

115. As a result of the above actions, Defendants **NYC**, individually, and/or vicariously, by and through its agents, servants and /or employees, and **OFFICERS**, failed to intervene to prevent or end the unlawful conduct inflicted upon Plaintiff **LEFONE ELEY** by **OFFICERS**.

116. As a result of the foregoing, Defendants **NYC** individually and and/or vicariously by and through their agents servants, and/or employees, and **OFFICERS**, displayed a deliberate indifference to Plaintiff **LEFONE ELEY'S** rights to be free from unreasonable searches and seizures and excessive use of force.

117. As a result of the foregoing, Defendants **NYC** individually and/or vicariously by and through its agents servants, and/or employees, including **OFFICERS** acted intentionally, willfully, maliciously, with reckless disregard for and deliberate indifference to Plaintiffs rights and physical well being.

118. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against the defendant on the foregoing causes of action for compensatory damages in amounts that exceed jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, against the defendant pursuant to 42 USC § 1988, and Plaintiff also demands the costs and disbursements of this action.

Dated: White Plains, NY
November 3, 2020

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/s/

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